

according to their evidence, and his direction, until Popham's time, nor is there clear proof that he ever fined them for that reason, separated from other misdemeanor. If juries might be fined in such case before attaints granted, why not since? for no statute hath taken that power from the Judge. But since attaints granted, the Judges resolved they cannot fine where the attaint lies, therefore they could not fine before. Sure this latter age did not first discover that the verdicts of juries were many times not according to the Judges opinion and liking.

But the reasons are, I conceive, most clear, that the Judge could not, nor can fine and imprison the jury in such cases.

[147] Without a fact agreed, it is as impossible for a Judge, or any other, to know the law relating to that fact, or direct concerning it, as to know an accident that hath no subject.

Hence it follows, that the Judge can never direct what the law is in any matter controverted, without first knowing the fact; and then it follows, that without his previous knowledge of the fact, the jury cannot go against his direction in law, for he could not direct.

But the Judge, quâ Judge, cannot know the fact possibly, but from the evidence which the jury have, but (as will appear) he can never know what evidence the jury have, and consequently he cannot know the matter of fact, nor punish the jury for going against their evidence, when he cannot know what their evidence is.

It is true, if the jury were to have no other evidence for the fact, but what is depos'd in Court, the Judge might know their evidence, and the fact from it, equally as they, and so direct what the law were in the case, though even then the Judge and jury might honestly differ in the result from the evidence, as well as two Judges may, which often happens.

But the evidence which the jury have of the fact is much other than that; for,

1. Being return'd of the vicinage, whence the cause of action ariseth, the law supposeth them thence to have sufficient knowledge to try the matter in issue (and so they must) though no evidence were given on either side in Court, but to this evidence the Judge is a stranger.

2. They may have evidence from their own personal knowledge, by which they may be assur'd, and sometimes are, that what is depos'd in Court, is absolutely false; but to this the Judge is a stranger, and he knows no more of the fact than he hath learn'd in Court, and perhaps by false depositions, and consequently knows nothing.

3. The jury may know the witnesses to be stigmatiz'd and infamous, which may be unknown to the parties, and consequently to the Court.

4. In many cases the jury are to have view necessarily, in many, by consent, for their better information; to this evidence likewise the Judge is a stranger.

[148] 5. If they do follow his direction, they may be attainted, and the judgment revers'd for doing that, which if they had not done, they should have been fined and imprisoned by the Judge, which is unreasonable.

6. If they do not follow his direction, and be therefore fined, yet they may be attainted, and so doubly punish'd by distinct judicatures for the same offence, which the common law admits not.

A fine revers'd in Banco Regis for infancy, per inspectionem & per testimonium del 4 fide dignorum. After upon examination of divers witnesses in Chancery, the suppos'd infant was prov'd to be of age, tempore finis levati, which testimonies were exemplified, and given in evidence after in Communi Banco, in a writ of entry in the quibus there brought. And though it was the opinion of the Court, that those testimonies were of no force against the judgment in the Kings Bench, yet the jury found, with the testimony in Chancery, against direction of the Court, upon a point in law, and their verdict after affirmed in an attaint brought, and after a writ of right was brought, and battle joyn'd.

7. To what end is the jury to be return'd out of the vicinage, whence the cause of action ariseth? To what end must hundredors be of the jury, whom the law supposeth to have nearer knowledge of the fact than those of the vicinage in general? To what end are they challeng'd so scrupulously to the array and pole? To what end must they have such a certain free-hold, and be probi & legales homines, and not of affinity with the parties concern'd? To what end must they have in many cases the view, for their exacter information chiefly? To what end must they undergo the heavy punishment of the villanous judgment, if after all this they implicitly must give